



BEFORE

The Thirteenth Amendment outlawing slavery throughout the United States came to be seen as a summary of the war's moral purpose. Yet four years earlier, the situation had looked very different.

THE 1861 AMENDMENT

Ironically, the Thirteenth Amendment in 1865, **to address the institution of slavery**, was not the first adopted by Congress. In 1861, when a final attempt was made to placate the South, an amendment that guaranteed the rights of enslaving states had **passed the House and Senate**. Although it had been signed by President Buchanan on his last day in office, it had **never been ratified by the individual states**. The difference between it and its successor marked **the distance the U.S. had traversed politically** in the intervening four years.

THE EMANCIPATION PROCLAMATION

President Abraham Lincoln's **Emancipation Proclamation of 1863** changed fundamentally the character of the Civil War. By embracing the **abolition of slavery** as the backbone of Union policy, it gave the conflict a fresh **moral dimension**. However, the form it took was dictated by expediency. If slavery was to be abolished once and for all, **more permanent measures** were called for.

President Lincoln's Emancipation Proclamation of 1863 left unfinished business. It gave freedom to enslaved people only in the ten named Confederate states that had failed to rejoin the Union by January 1st, the date on which the proclamation came into force. Some territories were specifically exempted from its provisions, among them the city of New Orleans and the 48 Virginia counties then in the process of forming the state of West Virginia. Other slaveholding border states, where the president still hoped to court moderate opinion in favor of rejoining the Union, were simply not mentioned at all. It was clear, then, that some further measure would be required if slavery was to be banned forever across the United States.

Passing the amendment

Lincoln himself believed that the only suitable vehicle would be a constitutional amendment. Yet there were formidable obstacles in the way of such a move. No new amendment had been passed in 60 years, and successful passage would require the support of two-thirds of the members of both Houses of Congress, and then ratification by three-quarters of the individual states. To make the measure truly binding, Lincoln took this to mean three-quarters of